

Court No. - 6

Case :- WRIT - C No. - 11464 of 2024

Petitioner :- Executive Engineer Electricity Distribution Division
Urban Dakshinanchal Electricity Distribution Corporation Ltd

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Alok Mishra

Counsel for Respondent :- Ajay Kumar Vashistha,C.S.C.

Hon'ble Dinesh Pathak,J.

1. After due deliberations at length, learned counsel for the petitioner seeks a week's time to explain the jurisdiction of Permanent Lok Adalat as enunciated under Section 22-C of Legal Services Authorities Act, 1987.

2. Put up this matter again **as fresh on 02.05.2024.**

Order Date :- 24.4.2024

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1. Petitioner (Electricity Department) has assailed the order dated 7.12.2023 passed by Permanent Lok Adalat on the ground that Permanent Lok Adalat has illegally decided the electricity bill dispute without any sincere efforts for conciliation between the parties. It is further submitted that for settlement of bill dispute there is specific provision under Clause 6.5 of the U.P. Electricity Supply Code, 2005, therefore, Permanent Lok Adalat has no jurisdiction to decide the same. In support of his submission learned counsel for the petitioner has placed reliance order dated 20.12.2018 passed by this Court passed in Writ - C No. 39082 of 2018.

2. Matter requires consideration.

3. Respondent No.1 is represented through learned Standing Counsel. Respondent No. 2 is also being represented through his counsel, who have prayed for and granted three weeks' time to file counter affidavit. Thereafter, petitioner will be having two weeks' time to file rejoinder affidavit, if any.

4. List on 18.7.2024.

Order Date :- 2.5.2024

Md Faisal